

BC573118 BC573118

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Case Number: BC573118 Hearing Date: July 27, 2026 Dept: 510

No.

7 - Mehrdad Setareh v. Kamran Setareh

Plaintiff

Mehrdad Setareh and 3200 Imperial Highway Corporation's Motion to Appoint

Expert under Evidence Code Section 730

Judgment

debtors Mehrdad Setareh and 3200 Imperial Highway Corporation ("Mehrdad") move to appoint an expert under Evidence Code Section 730. Mehrdad seeks the appointment of a CPA who can determine whether his judgment against judgment creditor Kamran Setareh ("Kamran") has been satisfied.

Evidence

Code section 730 provides:

When it appears to the court, at any time before or during the trial of an action, that expert evidence is or may be required by the court or by any party to the action, the court on its own motion or on motion of any party may appoint one or more experts to investigate, to render a report as may be ordered by the court, and to testify as an expert at the trial of the action relative to the fact or matter as to which the expert evidence is or may be required.

In

opposition, Kamran argues that this section only applies to appointment of experts before or during trial. Because Mehrdad and Kamran are in the post-judgment enforcement stage, this statute is inapplicable. The Court agrees. It cannot

appoint an expert under this section. The motion is denied.

The

Court has reviewed the briefing submitted by both parties and recognizes that several disputes remain outstanding, such as (1) when the \$124,950 credit became effective; and (2) what Paragraph 7 of the judgment means.

The

first issue was already briefed in full in the last motion brought by the parties on March 17, 2026. The Court expressed its decision on the issue in a tentative ruling^[1], which stated:

Kamran also argues that

Mehrdad improperly backdates a \$124,950 settlement credit between the parties.

The settlement agreement provides, “Upon clearance of the \$4,000 check, Kamran shall acknowledge a \$124,950 credit against the Judgment.” (Frandsen Decl., Att. E, ¶ 3.)

Kamran argues that this

credit was not to be retroactively applied to dates in 2021; instead, the credit was to be effective towards the judgment on the date of the receipt of the settlement funds. Mehrdad argues the opposite: the settlement credit accounts for two cashier checks issued for \$80,000 and \$44,950 in 2021 and therefore should be applied to the judgment total on those specific dates.

While the Court certainly

understands Mehrdad’s logic, the settlement agreement does not explicitly reiterate this same logic. Instead, it merely provides that the credit shall be acknowledged upon clearance of the check. There is no detail clarifying that the credit will be backdated. Given the plain terms of the agreement, the \$124,950 credit is properly applied upon clearance of the check. There are no contradictory terms contained in the settlement agreement that provide otherwise. Mehrdad’s calculations are also erroneous for this reason.

The

second issue identified has not yet been resolved by the Court. Given the circumstances, the Court will allow both parties to submit briefing on this discrete issue—i.e., whether payments toward the judgment received from 3200 Imperial

Highway Corp. should be discounted by 35% because Kamran owns 35% of the corporation. An answer to this question requires interpretation of paragraph 7 of the judgment, which states "To the extent the Award is against IHC, any proceeds from IHC used to satisfy the Award or subsequent judgment amount owed to Kamran shall not be assessed or deducted from Kamran's interest in IHC or any amounts owed to him for dividends or distributions of income from IHC."

The

Court is optimistic that after it makes a ruling on this outstanding dispute, the parties will stipulate to an accounting and share costs equally. If the parties do not stipulate, the Court may appoint a referee on its own motion under CCP § 639(a)(2).

Disposition

Judgment

debtors Mehrdad

Setareh and 3200 Imperial Highway Corporation's motion to appoint an expert is denied.

[1] The Court

recognizes that it did not formally adopt its tentative ruling on Mehrdad's motion to compel acknowledgment of judgment. Instead, Mehrdad asked to continue the matter and later took it off calendar. The Court therefore adopts the same reasoning to respond to the issue set forth in the papers here, and incorporates it as part of this order.